

**SUPREME COURT OF PAKISTAN**  
(Appellate Jurisdiction)

**PRESENT:**

Justice Jamal Khan Mandokhail  
Justice Irfan Saadat Khan

**Criminal Petition No. 731 of 2026**

*(Against the order dated 25.03.2026 passed by the Lahore High Court, Lahore in CrI. Misc. No. 10298-B/2026)*

Mst. Robina Bibi alias Rubina Kausar ...Petitioner(s)

**Versus**

The State and another ...Respondent(s)

For the Petitioner(s) : Mr. Ali Hussain Bhatti, ASC

For the Respondents No.1 : Mr. Muhammad Irfan Zia, Addl. PG  
to13 Punjab  
Muhammad Tariq, DSP  
Nadeem Inspector  
Adnan Shehzad, Inspector/IO

Date of Hearing : 16.06.2026

**ORDER**

**Irfan Saadat Khan, J.-** Through this order, we intend to dispose of the instant petition for post-arrest bail arising out of FIR No. 2518/2025, registered on 19.12.2025 at 03:20 p.m. at Police Station Noshehra Virkan, District Gujranwala. The case involves allegations under Section 9(1)3c of the Control of Narcotic Substances Act (CNSA), 1997, in relation to an occurrence that allegedly took place earlier that same day.

2. According to the contents of the FIR, at approximately 02:50 p.m., a police party headed by complainant Adnan Shahzad, Inspector, while on routine patrol near Ariyal Chowk, Ariyal Road, apprehended the petitioner, Mst. Robina Bibi alias Rubina Kausar, on suspicion. It is alleged that upon conducting her personal search with the assistance of a lady constable, a block of *charas* weighing 2000 grams

(2.0 kg) was recovered from her direct physical possession, leading to her arrest and the registration of the instant FIR.

3. The petitioner's post-arrest bail application was dismissed by the learned Additional Sessions Judge, Nowshera Virkan, vide order dated 17.01.2026, and her subsequent prayer for bail was turned down by the High Court vide order dated 25.03.2026 in Crl. Misc. No. 10298-B/2026, leading to the filing of the present petition.

4. Mr. Ali Hussain Bhatti, learned ASC appearing on behalf of the petitioner, Mst. Robina Bibi, contends that the petitioner is innocent and has been falsely roped into a fabricated and planted case by the local police with malafide intentions. He points out a glaring chronology of events to establish malice, highlighting that the petitioner was forcibly abducted from a residence in Hafizabad on 17.12.2025 at 05:30 p.m. by a joint police party. In response to this illegal detention, the petitioner's daughter, Mst. Tayyba Nemat, had filed a Habeas Corpus Writ Petition (W.P. No. 76179/2025) before the honorable Lahore High Court, Lahore, on 19.12.2025 before 12:00 noon. The learned counsel contends that the instant FIR was subsequently concocted at 03:20 p.m. on the very same day to defeat the Habeas Corpus proceedings and justify her illegal custody. He further submits that the petitioner was previously roped into a murder case (FIR No. 1881/2025 u/s 302/109/148/149 PPC, PS Noshehra Virkan) where she has already been admitted to post-arrest bail, and that this heavy quantity of narcotics was planted on her in collusion with the complainant party of the murder case to ensure that she remains behind bars. He adds that despite the police team possessing modern mobile devices with camera modules, no video recording or photograph of the recovery was made, in violation of statutory dictums, making it a clear case of further inquiry under Section 497(2) Cr.P.C.

He further added that the CNS case was engineered to keep the accused incarcerated or to prejudice her.

5. On the other hand, the learned Additional Prosecutor General, appearing for the State, has vehemently opposed the instant bail petition. He contends that a substantial quantity of contraband (2.0 kg *charas*) was recovered directly from the physical possession of the female accused. He argues that offences involving commercial-scale narcotics trafficking fall squarely within the prohibitory clause of Section 497 Cr.P.C. and pose a grave threat to society. He maintains that the forensic report is positive and at this tentative stage, the prosecution has successfully established a *prima facie* nexus between the accused and the alleged offence, thereby disentitling her to any leniency or grant of bail.

6. We have heard the learned counsel for the parties at length and have scanned the available record.

7. A comparison of the dates and times recorded in the documentation reveals an exceptional circumstance that cannot be ignored at this stage. The record indicates that a Writ Petition for Habeas Corpus (W.P. No. 76179/2025) was indeed moved before the Lahore High Court before noon on 19.12.2025, alleging the petitioner's illegal detention since 17.12.2025. The instant FIR was registered later that afternoon at 03:20 p.m. This closely matching timeline between the filing of the Habeas Corpus petition and the registration of the recovery case creates a noticeable dent in the prosecution's story. It is a critical factual anomaly which heavily compromises the transparency of the alleged recovery and places the prosecution's case under a serious cloud of doubt, rendering it a fit case for further inquiry.

8. We further note that the petitioner has already been granted post-arrest bail in the principal murder case (FIR No. 1881/2025). The defense plea, that this subsequent narcotics case was orchestrated through the connivance of the police and the rival complainant party, cannot be brushed aside at this tentative stage. In the present case, the deep-seated friction between the local police and the petitioner's family, originating from the prior murder case and culminating in the immediate filing of the Habeas Corpus petition, constitutes convincing evidence of potential *mala fides* and ulterior motives, rendering the present case as that of a further enquiry, the concession of bail is to be extended as a rule as held in *Tariq Bashir*<sup>1</sup>. Since the petitioner's plea of fake implication requires appreciation of evidence which can only be undertaken after recording evidence before the Trial Court.

9. We, therefore, without touching upon the merits of the case, are of the considered view that the petitioner-accused has been successful in making out a case for grant of bail. Reference in this regard may be made in the cases of *Ehsan Ullah*<sup>2</sup> and *Salman Mushtaq*<sup>3</sup>. We, therefore, convert this petition into an appeal and allow the same. Needless to mention that the observations made in this order are only tentative in nature and shall not, in any manner, influence the Trial Court during the course of the trial.

10. These are the reasons of our short order dated 16.06.2026, which is reproduced hereinbelow:

*"For the reasons to be recorded later, this petition is converted into an appeal and is allowed. The appellant Mst. Robina Bibi @ Rubina Kausar is allowed bail in the instant FIR, subject to her furnishing bail bond in the sum of Rs. 100,000/- (Rupees one*

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<sup>1</sup> Tariq Bashir and 5 others vs. The State (PLD 1995 Supreme Court 34)

<sup>2</sup> Ehsan Ullah vs. The State (2012 SCMR 1137)

<sup>3</sup> Salman Mushtaq and others vs. The State through P.G. Punjab and another (2024 SCMR 14)

*hundred thousand only), with one surety in the like amount, to the satisfaction of the Trial Court."*

Islamabad

16.06.2026

'NOT APPROVED FOR REPORTING'

Arshed/Zainab Qazi, Judicial LC